

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 11, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 4	26CV488397	Santa Clara Valley Water District v. San Jose Water Company et al.	Click LINE 4 or scroll down for ruling.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413103	Borton Petrini, LLP v. Joseph Commendatore	Order of examination: <u>parties to appear.</u>
Line 2	24CV449540	Main Street Shopping Center, LLC et al v. Una Mas Restaurants, Inc.	Order of examination: <u>parties to appear.</u>
Line 3	25CV473089	Leticia Camacho v. Ana Ocampo-Aguilera	Motion to withdraw as counsel for plaintiff: <u>parties to appear.</u>

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Calendar Line 1

Case Name: Daniel Scholl v. Amiel Wade et al.

Case No.: 25CV479669

Defendant Wade Litigation, APC's motion to compel (1) initial responses to form interrogatories; and (2) further responses to requests for production, set one. Notice is proper and no timely opposition was filed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.) Plaintiff filed an opposition on June 10, 2026, one day before the hearing. The court has not considered the untimely filing. The parties are reminded that the court will not consider filings that do not comply with applicable Code of Civil Procedure filing deadlines. (See Code Civ. Proc., §§ 1005 [governing most motions]; 437c [governing motions for summary judgment or adjudication].)

Meet and Confer Requirements

Defendant's meet and confer efforts—consisting of a single meet and confer letter sent by U.S. Mail—do not comply with the current version of Code of Civil Procedure section 2016.040, subdivision (a), which requires “facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” (Italics added.) The parties are admonished to undertake meaningful, good faith meet and confer efforts before filing any further discovery motions.

Initial Responses to Form Interrogatories

Plaintiff did not timely respond to the form interrogatories propounded by defendant. An attachment to plaintiff's untimely opposition to the motion to compel indicates plaintiff responded to the form interrogatories on June 8, 2026, after the deadline to oppose the motion to compel. The court has not considered the adequacy of those untimely responses and expresses no opinion on whether they are code-compliant. The motion to compel initial responses to form interrogatories is GRANTED. (Code Civ. Proc., § 2030.290.) Plaintiff is ordered to provide verified responses to the form interrogatories, without objections, no later than July 10, 2026.

Further Responses to Requests for Production, Set One

Set one of defendant's request for the production of documents includes 33 requests. Plaintiff responded to the requests, indicating that he would produce certain documents in response to some of the requests. The court agrees with defendant's argument that those responses are deficient because they (1) are unverified (Code Civ. Proc., §2031.250; *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1358); and (2) do not include a statement of compliance (Code Civ. Proc., § 2031.220). An attachment to plaintiff's untimely opposition to the motion to compel indicates plaintiff supplemented his responses on June 8, 2026, after the deadline to oppose the motion to compel. The court has not considered the adequacy of those untimely supplemental responses and expresses no opinion on whether they are code-compliant. The motion to compel further responses to requests for production is GRANTED.

Plaintiff is ordered to provide verified responses that include a statement of compliance no later than July 10, 2026.

Request for Sanctions

Defendant requests discovery sanctions in the amount of \$110. The court finds sanctions are appropriate. Plaintiff provides no substantial justification for his failure to timely provide code-compliant discovery responses. As to the amount of sanctions requested, defendant did not submit evidence supporting the \$110 request. (Code Civ. Proc., § 2023.040 [request for sanctions “shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”].) The court will grant discovery sanctions of \$60, which is the motion filing fee. The request for sanctions is GRANTED IN PART. Plaintiff must pay defendant \$60 no later than July 10, 2026.

The court will prepare the order.

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Calendar Line 4

Case Name: Santa Clara Valley Water District v. San Jose Water Company et al.

Case No.: 26CV488397

Plaintiff Santa Clara Valley Water District's motion for order of prejudgment possession in an eminent domain proceeding. (Code Civ. Proc., § 1255.410.) Notice is proper and the motion is unopposed. The court approved service by posting and publication of the summons, complaint, this motion, and other documents. Plaintiff has filed a proof of service by posting at the subject property. The proof of service by publication has not been filed yet, but that does not affect the adequacy of the notice for this motion.

An eminent domain plaintiff may move for an order of prejudgment possession (also known as a quick-take procedure). (Code Civ. Proc., § 1255.410 (unspecified statutory references are to this Code); *Robinson v. Superior Court* (2023) 88 Cal.App.5th 1144, 1164 (*Robinson*).) The motion must be served on the record owner of the property, if any, at least 60 days before the hearing on the motion. (§ 1255.410, subd. (b).) If the motion is not opposed, the court "the court shall make an order for possession of the property" if the court finds (1) the plaintiff is entitled to take the property by eminent domain; and (2) the plaintiff "has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article." (§ 1255.410, subd. (d)(1).) "The power of eminent domain may be exercised to acquire property for a proposed project only if all of the following are established: (a) The public interest and necessity require the project[;] (b) The project is planned or located in the manner that will be most compatible with the greatest public good and the least private injury[; and] (c) The property sought to be acquired is necessary for the project." (§ 1240.030; see *Robinson*, at p. 1167 ["an entity with the general authority to condemn will have the right to acquire a particular property using the power of eminent only if the three requirements of section 1240.030 are met."].) A public agency must also adopt a resolution of necessity before acquiring property by eminent domain. (*Robinson*, at p. 1167; § 1240.040.)

Plaintiff's March 2026 motion was timely filed more than 60 days before the June 2026 hearing. (§ 1255.410, subd. (b).) The subject property has neither an address nor an Assessor's Parcel Number. The complaint and motion for prejudgment possession include a legal description of the subject property. (Complaint, ¶ 3; Motion at 4;5-5:12.) Plaintiff adopted a resolution of necessity for the subject property in October 2025, stating the subject property is necessary as part of "flood improvements along approximately 9 miles of Coyote Creek." (Complaint, exh. C.) Plaintiff deposited \$500 with the State Treasurer for the property, an amount determined by an appraisal. (Notice of Deposit, filed 3/13/26, exhs. A & B.) The complaint alleges that plaintiff may already own the subject property because it owns two adjacent parcels (APN 467-13-055 & 467-13-056); defendant San Jose Water Company was named "in an abundance of caution." (Complaint, ¶ 8.) Defendant San Jose Water Company filed a disclaimer in March 2026 in which it "hereby disclaims and claims no interest in the real property described above and in Plaintiffs complaint on file herein, or in the compensation that may be awarded by the Court, or which might otherwise be payable, for the acquisition of any of the real property described in Plaintiffs complaint on file herein." (Disclaimer of Interest, filed 3/27/26, p. 2:17-22.) The court takes judicial notice of the complaint in this matter; the disclaimer of interest; and the notice of deposit. (Evid. Code, § 452, subd. (d).)

Upon review of the record in this case, the court finds by a preponderance of the evidence that: (1) the public interest and necessity require the project; (2) the project is planned or located in a manner that will be most compatible with the greatest public good and the least private injury; and (3) the property sought to be acquired is necessary for the project. Because there has been no opposition and plaintiff has satisfied the two conditions for prejudgment possession described in section 1255.410, subdivision (d)(1), the motion for prejudgment possession is GRANTED. The court will prepare the order.

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